Notification Waiver Determination

Guardian Childcare & Education – Mini Masterminds Macquarie Park, NSW

Acquisition	Guardian Community Early Learning Centres Pty Ltd, applied for a notification waiver in respect of its proposed acquisition of substantially all of the assets required for the operation of the centre-based day care centre trading as Mini Masterminds Macquarie Park (**Target Centre**) from MMZ 21 Pty Ltd, as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	16 October 2026

Parties to the Acquisition	The acquirer, Guardian Community Early Learning Centres Pty Ltd, is a wholly owned subsidiary of Guardian Early Learning Group Pty Ltd (trading as Guardian Childcare & Education (**Guardian Group**)). The vendor, MMZ 21 Pty Ltd, is a wholly owned subsidiary of MMZ Holdings Pty Ltd (together with its subsidiaries, the **Mini Masterminds Group**). MMZ 21 Pty Ltd operates the Target Centre business. The Guardian Group and the Mini Masterminds Group both provide centre-based childcare and early childhood education services (long-day care) for children aged approximately 0-6 years old, as well as ancillary services associated with the operation of a childcare centre such as meals and incidental educational programmes. The Guardian Group operates a network of childcare centres across NSW, Vic, Qld, SA and the ACT. The Guardian Group intends to permanently close Guardian Childcare & Education Macquarie Park and Guardian Childcare & Education Marsfield that operate in the local area surrounding the Target Centre. The Mini Masterminds Group operates a network of 21 centre-based childcare centres in NSW (including the Target Centre). The Target Centre is located at 2 Cottonwood Crescent, Macquarie Park NSW 2113.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**).

	Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. there is a small horizontal overlap between the Guardian Group and the Target Centre in the supply of centre-based childcare centres and early childhood education services in the local area surrounding the Target Centre b. the parties' combined share in the supply of centre-based childcare and early childhood education services is low, and the increase in share of supply arising from the Acquisition would be small c. there are alternative suppliers of centre-based childcare centres and early childhood education services in the local area surrounding the Target Centre. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act